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Australian Government

Defence

DEFENCE INSTRUCTION

This Defence Instruction is issued by us pursuant to subsection 11(1) of the [Defence Act 1903](#) and is effective as at today's date. *Defence Instruction* dated 27 September 2024 is hereby revoked.



Handwritten signature of Greg Moriarty in black ink.

Greg Moriarty, AO
Secretary
Department of Defence
28 January 2026

Handwritten signature of David Johnston in black ink.

David Johnston, AC
Admiral, RAN
Chief of the Defence Force
19 January 2026

To defend Australia and its national interests in order
to advance Australia's security and prosperity
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DOCUMENT MANAGEMENT

Issued by:	The Secretary and Chief of the Defence Force.
Management:	This Defence Instruction is current from the date of issue until it is amended, reissued or revoked. The Defence Instruction will be reviewed and amended in accordance with the Administrative Policy Arrangements. The annual update of this Defence Instruction may require subordinate documents to be updated.
Application:	All Defence personnel are to comply with the provisions of this Defence Instruction.
Availability:	Is available for public release and its currency is assured only if sourced from Administrative Policy .
Accountable Officer:	Deputy Secretary Governance.
Responsible Officer:	First Assistant Secretary Governance, Planning and Performance.
Contact:	admin.policy@defence.gov.au

AMENDMENT CERTIFICATE

Page	Amendment description	Effective date
Page 37	Two new provisions included: SE3: Base Accountabilities.	January 2026
Page 51	MCS4: Defence Explosive Safety Regulatory Framework.	
	Existing provisions updated:	
	AG - Administration and Governance	
Page 11	AG1: Administration of the Australian Defence Force and the Department of Defence: Accountable Officer, Policy Owner title and Policy Contact updated.	
Page 14	AG4: Incident reporting and management: Update to Accountable Officer and editorial updates.	
Page 14	– AG4.2g: Inclusion that subject to Australian law AG4 is not intended to override or affect potential legal privileges.	
Page 15	– AG4.4c: Inclusion of the Defence Enterprise Case Management Solution (DECMS) as the enterprise system for reporting incidents and instruction to follow authorised business procedures for DECMS, as published in the Enterprise Management System.	
Page 15	– AG4.7: Amended referral to incident reporting pathways.	
Page 16	– Definition of Notifiable Incident: Amendment (b) to refer to a commanding officer and inclusion (d) of undisclosed or mismanaged conflicts of interest.	
Page 18	AG5: Conflicts of interest: Update to title of provision, update to Accountable Officer, editorial updates and new mandatory provisions.	
Page 18	– Defence personnel: Update to document name and URL.	
Page 18	– AG5.3: Removal of terminology referring to potential conflicts of interest throughout AG5; Inclusion of alternate roles, competing duties and secondary employment as points where conflicts of interest need to be assessed.	
Page 19	– AG5.5: Amendment to terminology in line with new APS wide COI framework.	
Page 19	– AG5.9: Amendment to provision relevant to annual declaration of interests.	
Page 19	– AG5.10: Amendment to provisions relevant to procurements.	
Page 20	– AG5.11: Inclusion of provision relevant to contract management.	
Page 20	– AG5.12: Amendment to provisions relevant to APS recruitment.	
Page 20	– AG5.13: Inclusion of provisions relevant to grants.	
Page 20	– AG5.14: Amendment to provision relevant to post-separation employment.	
Page 21	– AG5.17: Amendment to provision relevant to intimate relationships.	
Page 21	– AG5.18: Amendment to provision relevant to gifts, benefits and sponsorship	

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Page 21	Definitions: Amendment to definition of actual conflict of interest; perceived conflict of interest and Decision Maker.	
Page 22	Definitions: Inclusion of definition of material personal interest.	
Page 23	AG7: Legal Services in Defence.	
Page 23	– AG7.4: Updated to clarify definition of the scope of ‘legal services’.	
Page 23	– AG7.8: The exclusion of DCS is noted, as DCS is not part of Defence Legal.	
Page 24	– AG7.10: Clarification of Defence personnel’s obligation to engage with Defence Legal of all new projects and capabilities and the scope of legal proceedings.	
Page 24	– The addition of AG7.10a (vi) to include any proposal to develop or amend legislation by another agency that may require action by the Defence Minister.	
Page 26	– The addition of AG7.10f to include issues regarding the Commonwealth’s legal professional privilege.	
Page 28	SPI - Strategy Policy and Industry SPI1: Safeguarding Australia’s Military Secrets has moved from SE1 to SPI1	
	SE - Security and Estate	
Page 35	SE2.2J: Defence Training Area Management: Addition of ‘Partner Nation’ and the removal of ‘visiting foreign forces’	
	MCS - Military Command Support	
Page 45	MCS1: Defence Seaworthiness: Alignment of the provisions ‘Object’ statement to include administration of naval flag requirements, regulatory functions and the classification of naval vessels against sovereign design and construction rules.	
Page 45	– MCS1.1: Removal of the provision for the Defence Seaworthiness Authority’s duties and responsibilities to include those of Flag Authority.	
Page 45	– MCS1.2: Removal of a provision that the Defence Seaworthiness Authority is required to manage and review the efficacy of the Defence Seaworthiness Regulatory System, Defence Seaworthiness Management System and the Defence Flag Administration Framework. Inclusion of a provision that the Defence Seaworthiness Authority is required to manage and review the efficacy of the Defence Seaworthiness Program, The Australian Naval Flag Framework and the Australian Naval Seaworthiness Framework.	
Page 45	– MCS1.3: Inclusion of a provision that the Defence Seaworthiness Authority must appoint and establish functions for the Australian Naval Flag Administrator, the Director General of the Australian Naval Seaworthiness Authority and the Assistant Secretary of the Australian Naval Classification Authority.	

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Page 45-46	– MCS1.4, 1.5, 1.6, 1.8, 1.9: Removal of reference to the Defence Seaworthiness Management System, and of Management Systems and Frameworks specified in support of the Defence Seaworthiness Regulatory System. Clarification of the responsibilities of the Defence Seaworthiness Authority. Inclusion of provision for the responsibilities of the Australian Naval Flag Administrator, and requirements for the powers of the Director General of the Australian Naval Seaworthiness Authority and the Assistant Secretary of the Australian Naval Classification Authority.	
Page 45	– MCS1.7: Removal of the requirement for the Defence Seaworthiness Authority to appoint the Defence Seaworthiness Regulator, and provision for the management systems and frameworks to support the Defence Seaworthiness Program.	
Page 48	MCS2.6: Defence Landworthiness: Replacing the rank of Major General with Brigadier as the suitably qualified officer of the Army who holds the rank of as the Defence Landworthiness Regulator (DLwR) and establish functions for the position. MJE - Military Joint Enabling	
Page 53	MJE1: Disclosure of certain personal information in relation to youth protection incidents.	
Page 53	– MJE1.4: is already included as an exception.	
Page 54	– MJE1.5: Para reference MJE1.2 has been added given	
Page 54	– MJE1.7: References updated. MJE1: Notes reference for the definition of unacceptable behavior/sexual misconduct updated. New reference provides a more comprehensive description.	
Page 55	MJE2: Defence Health.	
Page 55	– MJE2.5: Addition to the responsibilities of the Surgeon General Australian Defence Force.	
Page 56	– MJE2.14: References updated.	
Page 58	MJE3: Defence Logistics Authority. – MJE3.3, MJE3.7 and MJE3.12: Explosive ordnance safety and regulation references removed following introduction of MCS4. PPL – People Editorial updates throughout (including updates to references and URLs).	
Page 61	– PPL1: Authority in an integrated Defence workplace: Policy contact title updated.	
Page 62	– PPL1.9 & 1.10: Paragraphs added to include instructions to Defence personnel, while carrying out a Bilateral Personnel Activity with the New Zealand Defence Force.	

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Page 64	– PPL2: Disclosure of personal information to the Department of Veterans' Affairs and the Commonwealth Superannuation Corporation: Title updated to align with MILPERSMAN.	
Page 66	– PPL3: Alcohol testing in the Australian Defence Force: Policy contact title updated.	
Page 68	– PPL4: Management of the use of prohibited substances in the Australian Defence Force: Policy contact title updated.	
Page 68	– PPL4.4: Paragraph reworded to reflect testing required for there to be finding of a positive test result.	
Page 70	– PPL5: Disclosure of certain personal information to foreign entities: Policy contact title updated.	
Page 72	– PPL6: Reporting, recording managing civilian court processes and service disciplinary matters: Title description reworded and policy contact updated to reflect new title.	
Page 74	– PPL7: Required behaviours in Defence: Object wording updated to reflect ADF Behaviours and APS Values; Notes additional reference added to cover recording of incidents within DECMS. Definition of term 'Commander' added.	
Page 74	– PPL7.4: Addition of the term 'Commanders' as being responsible for the implementation of a Stop Sexual Harassment Order or a Stop Sexual Harassment Direction.	
Page 74	– PPL7.7: Paragraph added to include reference that places a legal obligation on Defence to take proactive and meaningful action to prevent workplace sexual misconduct.	
Page 75	– PPL7.8: Additional obligation on Commanders/Managers to undertake any actions required to implement the Defence Respect @ Work Framework.	
Page 75	– PPL7.10: Clarifies that Defence personnel receiving referrals of unacceptable behaviour complaints from the Complaint, Resolution and Support Services Unit must address and resolve the matter in line with established procedures and timelines.	
Page 76	– PPL8: Engaging in political activities: Policy contact title updated.	
Page 80	– PPL10: Notification of Protection Order or Weapons Prohibition Order: Policy Owner and policy contact title updated.	
Page 82	– PPL12: Defence Support to Coronial Inquiries: Update to clarify responsibilities and reinforce protections around voluntary participation and incident management. Specifically the wording has been clarified to address concerns regarding the provision of voluntary statements. Further amendments reinforce appropriate conduct and responsibilities in the context of incident management and voluntary processes.	
Page 85	Definitions A person/s engaged under a contract: Update to document name and URL.	

PURPOSE

1. This is a Defence Instruction for the purposes of section 11 of the [Defence Act 1903](#). Its primary purpose is to support the Secretary of Defence (the Secretary) and the Chief of the Defence Force (CDF) to discharge their responsibilities under subsection 10(1) of the [Defence Act 1903](#), to jointly administer the Australian Defence Force.
2. Its secondary purpose is to support the Secretary to discharge the Secretary's responsibility under paragraph 57(2) (a) of the [Public Service Act 1999](#) to manage the affairs of Defence in an efficient, effective, economical and ethical manner. To the extent necessary, it draws authority from subsection 20(1) of the [Public Service Act 1999](#).
3. This Defence Instruction:
 - a. includes prescribed and proscribed (mandatory) provisions specified by the use of the words 'must' or 'must not' that apply to all or specified Defence personnel.
 - b. prevails over any Defence document that is not issued under section 11 of the [Defence Act 1903](#) or under section 20A of the [Public Governance Performance and Accountability Act 2013](#), so far as it relates to matters of an administrative nature.
 - c. is not intended to duplicate powers, functions and duties that already exist in legislation.
 - d. does not provide for and is not intended to limit the implied discretionary power of Accountable Officers to issue, or authorise the issue of, procedures and guidelines.

INTERIM DEFENCE INSTRUCTION

4. **Interim Defence Instructions** may be used as a temporary measure (for up to 12 months). An Interim Defence Instruction can amend or revoke provisions of this Defence Instruction or make a new provision. They prevail over extant provisions of this Defence Instruction, to the extent of any inconsistency until the Interim Defence Instruction expires, or is revoked, and its contents incorporated into this Defence Instruction.

WHAT DOES THIS DEFENCE INSTRUCTION MEAN TO ME

5. **If you are a Defence member:**
 - a. this Defence Instruction contains 'general orders' for the purposes of the [Defence Force Discipline Act 1982](#) (indicated by use of the words 'must' or 'must not').
 - b. failure to comply with a mandatory provision in this Defence Instruction that applies to a Defence member may result in administrative or disciplinary action.
6. **If you are a Defence Australian Public Service (APS) employee:**

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- a. this Defence Instruction contains lawful and reasonable directions (indicated by use of the words ‘**must**’ or ‘**must not**’) for the purpose of subsection 13(5) of the [Public Service Act 1999](#).
 - b. failure to comply with a mandatory provision of this Defence Instruction that applies to a Defence APS employee may result in an investigation and sanction as provided for in subsection 15(1) of the [Public Service Act 1999](#). These may range from reprimand to termination of employment.
7. **If you are a person engaged under a contract, another Commonwealth Department secondee, or a foreign military exchange officer:** your contract or your secondment or exchange arrangement may require you to comply with:
- a. the mandatory provisions of this Defence Instruction; and
 - b. any administrative policies and directions issued pursuant to this Defence Instruction where they are directly relevant to the work you will be performing for Defence.

KEY ROLES RELATING TO THIS DEFENCE INSTRUCTION

8. The **Secretary** and the **CDF** provide the highest level of authority to jointly issue Defence Instructions and [Interim Defence Instructions](#).
9. By [delegation of power](#) the **Associate Secretary** and the **Vice Chief of the Defence Force** hold the next level delegation to jointly issue Defence Instructions (including [Interim Defence Instruction](#)). If, however, it is proposed that a Defence Instruction (including an Interim Defence Instruction) contain a grant, to an Accountable Officer, or other specified appointment, of a power to issue directions binding on Defence personnel across the Defence enterprise, the Defence Instruction will need to be issued by the Secretary and CDF. This is because only the Secretary and the CDF may delegate their power to issue Defence Instructions under subsection 120A(3A) of the [Defence Act 1903](#).
10. **Accountable Officers** are, in accordance with Administration and Governance Provision 1 of this Defence Instruction (AG1), accountable to the Secretary and the CDF for:
 - a. ensuring their provisions in this Defence Instruction are fit for purpose; and
 - b. effectively promoting realisation of the Defence strategic outcomes for which they are responsible.
11. The **Associate Secretary** is accountable to the Secretary and the CDF for developing, issuing and maintaining arrangements for administrative policies (the [Administrative Policy Arrangements](#)).
12. On behalf of the Associate Secretary, and in accordance with the [Administrative Policy Arrangements](#), the **First Assistant Secretary Governance, Planning and Performance Division (FAS GPP)** is responsible for coordinating the process of amending or revoking and re-issuing this Defence Instruction annually. By [delegation of power](#), FAS GPP may revoke Defence Instructions (including Interim Defence Instructions).
13. **Chief Counsel** is responsible for providing legal advice and clearance of Defence

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Instructions (including Interim Defence Instructions) prior to submission to the Secretary and the CDF (or their delegates) for approval to issue.

14. **Group Heads and Service Chiefs** are responsible for properly promoting and implementing this Defence Instruction and any administrative policies and directions (where applicable) within their Group or Service.

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ADMINISTRATION AND GOVERNANCE PROVISIONS

Title:	AG5 – Conflicts of interest
Object:	AG5 mandates conduct relating to declaring, recording and managing conflicts of interest in Defence.
Accountable Officer:	Deputy Secretary Governance
Policy Owner:	Principal Integrity Officer (First Assistant Secretary Defence Integrity)
Policy Contact:	Director Integrity Policy
Cancellations:	NIL

- AG5.1 All Defence personnel **must** act transparently when making work-related decisions, reflecting the probity and ethical standards of the Commonwealth and Defence, including adherence to Defence Values and Behaviours.
- AG5.2 Defence personnel **must not**, either by act or omission:
- a. make improper use of their authority, status, power or position in order to solicit or obtain a benefit or advantage (or cause a disadvantage) for themselves or any other person or group (including partners, relatives, friends, associates and any person that does or may do business with Defence);
 - b. use Defence resources (including official information not in the public domain) to gain, or seek to gain, a private benefit or advantage (or cause a disadvantage) for themselves or any other person or group;
 - c. accept any gift, benefit or sponsorship that might lead a reasonable person to view such acceptance as a conflict of interest;
 - d. behave in a manner which could be perceived as favouritism, bias, coercion or corruption; or
 - e. take improper advantage of their official position or access to privileged information gained in that position, when seeking or participating in employment, business or other activities outside of Defence.
- AG5.3 All Defence personnel **must** regularly assess whether they have an actual or perceived conflict of interest, including, but not limited to when they change roles, have another role or competing duty, experience a change in personal circumstance, or undertake secondary employment or post-separation employment opportunities.
- AG5.4 The Principal Integrity Officer (PIO) **must** be consulted where there is any doubt about whether:
- a. a conflict of interest exists or not; or
 - b. the risks associated with the conflict of interest can be adequately mitigated or not.

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- AG5.5 All Defence personnel **must** take reasonable steps to avoid situations where their private financial interests, relationships (intimate or professional), and other interests (or those of [immediate family members](#)) could compete, or could be perceived to compete, with their official functions or duties.
- AG5.6 All Defence personnel **must** promptly declare any conflicts of interest (actual or perceived) as and when they are identified, using the [AF220 Defence Conflict of Interest Declaration Form](#).

ANNUAL DECLARATION OF INTEREST

- AG5.7 An annual declaration of interests, using the [AF220 Defence Conflict of Interest Declaration Form](#), **must** be made by 31 October by:
- a. members of the Senior Leadership Group (SLG) including all Star Ranked Officers, Star Ranked SERCAT 5 Reserve Officers, Senior Executive Service Officers, Medical Officers Class 5 and 6, and Chiefs of Divisions;
 - b. anyone below SLG level who is designated by their Group Head or Service Chief because the position they occupy, their responsibilities or their level of decision-making require them to be particularly transparent about their financial and personal interests; and
 - c. all external committee members and chairs.
- AG5.8 The PIO **must** be notified of the positions identified at AG5.7b.
- AG5.9 A declaration of interest **must** also be made by:
- a. Star Ranked SERCAT 3 Reserve Officers, within two weeks of the commencement of any specified task/official functions or duties and if applicable, annually thereafter in line with AG5.7;
 - b. newly promoted SLG or SLG who have transitioned to a new role, within two weeks of commencing and annually thereafter in line with AG5.7; and
 - c. anyone acting in one of the positions identified at AG5.7 for a period of three months or more, within two weeks of commencing their acting duties and annually thereafter in line with AG5.7.

PROCUREMENT

- AG5.10 Defence personnel responsible for a procurement outcome with an expected value at or above \$125,000 inclusive of the Goods And Services Tax, **must** ensure that Defence personnel involved in a procurement complete an [AF220 Defence Conflict of Interest Declaration Form](#), regardless of whether a conflict of interest exists.
- a. At a minimum, a declaration must be made by Defence personnel at the following stages: prior to the approval of an Endorsement to Proceed; prior to commencing an

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evaluation of any response to an approach to market and prior to exercising the 'Commitment Approval – [Public Governance Performance and Accountability Act 2013](#) section 23(3)' delegation.

- b. Defence personnel are not required to complete more than one declaration for a procurement unless circumstances arise that change an existing declaration or create a new conflict of interest but must consider at each of the stages listed at AG5.10a if circumstances have changed that warrant a new declaration to be made.

CONTRACT MANAGEMENT

AG5.11 When performing the role of a Contract Manager, Contract Authority, Commonwealth Representative (or equivalent), Defence personnel **must** regularly assess whether they have a conflict of interest in performing their official functions or duties. Where a conflict of interest exists or arises, they **must** immediately declare it using the [AF220 Defence Conflict of Interest Declaration Form](#).

RECRUITMENT

- AG5.12 Defence personnel must complete an [AF220 Defence Conflict of Interest Declaration Form](#):
- a. when performing the role of Chairperson or Panel Member for an APS Merit-based Recruitment Activity, when the list of candidates is known but before accessing applications; and
 - b. when preparing and/or signing the Section 25 or 26 paperwork, before approving a transfer outside of an APS Merit-based Recruitment Activity.

GRANTS

- AG5.13 Defence personnel must complete an [AF220 Defence Conflict of Interest Declaration Form](#):
- a. before participating in an assessment of grant applications; and
 - b. before making a decision to approve or not approve a grant application (including consideration of any variations).

POST-SEPARATION EMPLOYMENT

- AG5.14 Defence personnel **must** declare any offer of post-separation employment with a prospective employer that provides goods or services to Defence, is a member of a standing offer panel or that otherwise may give rise to a conflict of interest (actual or perceived), using the [AF220 Defence Conflict of Interest Declaration Form](#), as soon as practicable and before accepting the offer.
- AG5.15 Defence personnel **must** (in writing), notify their prospective employer of their conflict of interest disclosure obligations to Defence on receipt of an offer of employment. Defence personnel **must** retain written evidence of the notification and provide a copy to the relevant business area.
- AG5.16 Defence personnel must (in writing), notify their prospective employer of any management strategies or restrictions imposed by Defence, before accepting an

offer of post-separation employment. Defence personnel **must** retain written evidence of the notification and provide a copy to the relevant business area.

INTIMATE RELATIONSHIPS

- AG5.17 All Defence personnel **must** consider whether their current or former intimate relationship/s may give rise to a conflict of interest (actual or perceived) and if so, **must** declare these in writing to their manager/commander. Both the declarant and the manager/commander **must** retain written evidence of the declaration.

GIFTS, BENEFITS AND SPONSORSHIP

- AG5.18 All Defence personnel **must** comply with [Defence's Gifts, Benefits and Sponsorship policies](#).

LOBBYING CODE OF CONDUCT

- AG5.19 All Defence personnel **must** comply with the Australian Government [Lobbying Code of Conduct](#).

MANAGING CONFLICTS OF INTERESTS

- AG5.20 Defence personnel **must** promptly submit an [AF220 Defence Conflict of Interest Declaration Form](#) through to the appropriate [Decision Maker](#) for a decision on the management of any conflict of interest declared.
- AG5.21 Written consent **must** be obtained from third parties by using the [Declaration of Interest Third Party Release Form](#), if Defence personnel are proposing to disclose a third party's personal information in an [AF220 Defence Conflict of Interest Declaration Form](#).
- AG5.22 The [Decision Maker](#) must ensure that a copy of the completed [AF220 Defence Conflict of Interest Declaration Form](#) is provided to the relevant business area for central oversight and implementation of management strategies, and a copy of the form **must** be submitted to [Defence Integrity Division](#) and the declarant.

For the purpose of AG5:

A **conflict of interest** refers to any situation where there is, could be or may appear to be, a conflict between an individual's private interests (including those of their immediate family) and their public duties and responsibilities. Information to assist Defence personnel to apply this instruction can be found [here](#).

An **actual (real) conflict of interest** exists where you have a personal interest or competing duty that could affect or be affected by the way you perform your official functions or duties.

A **perceived (apparent) conflict of interest** exists where a reasonable person might think that you have a personal interest, relationship or competing duty that could affect or be affected by the way you perform your official functions or duties, even though there is no actual conflict of interest.

A **'material' personal interest** has the potential to give rise to an actual or perceived conflict of interest. Personal interests do not give rise to a conflict of interest unless there is a real or sensible possibility of conflict (not simply a remote or theoretical possibility of conflict).

APS Merit-based Recruitment Activity means an APS recruitment process for ongoing positions or non-ongoing positions advertised for 12 months or more where:

- All eligible members of the community had a reasonable opportunity to apply.
- Candidates were assessed using a competitive selection process.
- Assessment was based on how well candidates' work-related qualities matched the genuine requirements of the role.
- Focus was on each candidate's capacity to achieve outcomes.
- Merit was the primary consideration in the final decision.

Defence personnel means all Australian Public Service employees in the Department of Defence, Defence locally engaged employees, Defence civilians, all Australian Defence Force members and their equivalents from other Defence organisations on exchange to Defence, external committee members and person/s engaged under a contract including a contractor, consultant or outsourced service provider as defined in the [Glossary - Accountable Authority](#).

[Instructions and Delegations](#).

Manager/Commander means Defence personnel who direct a range of human and physical resources and their associated financial responsibilities to achieve corporate objectives. A manager or commander may be a first-level supervisor or performs the role of a first-level supervisor where they have immediate subordinates, as well as the role of a second-level supervisor where they have Defence personnel supervised by those subordinates.

Decision Maker refers the Defence official responsible for evaluating actual and perceived conflicts of interest and mandating appropriate management strategies to mitigate risk. Further guidance can be found [here](#).